

Court No. - 21

Case :- WRIT - C No. - 841 of 2013

Petitioner :- M/S Ideal Hotel And Industries Ltd.

Respondent :- U.P. Electricity Regu. Commission And Others

Petitioner Counsel :- Ajay Kumar Singh, Ashish Kumar Singh

Respondent Counsel :- Mahaboob Ahmad

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Zaki Ullah Khan, J.

Issue notice pending admission.

Notice on behalf of the respondent nos. 2 and 3 has been accepted Shri Mahboob Ahmad, learned counsel for the said respondents.

Shri Ajay Kumar Singh, learned counsel for the petitioner under-takes to serve notice of the Writ Petition on the learned Standing Counsel appearing for the respondent no. 1 within 48 hours.

Therefore, no notice need be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed by 29.1.2013.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 6.2.2013.

The case will be listed amongst the cases listed at the top of the cause list of the said date.

Order Date :- 8.1.2013

Ajeet...

Court No. - 21

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Petitioner :- M/S Ideal Hotel And Industries Ltd.

Respondent :- U.P. Electricity Regu. Commission And Others

Counsel for Petitioner :- Ajay Kumar Singh, Ashish Kumar Singh, Ranjit Saxena

Counsel for Respondent :- Mahaboob Ahmad, S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard Sri Ranjit Saxena, learned counsel for the petitioner and learned Standing Counsel for the State.

The contention raised in this petition is that the demand raised under the impugned notices, are unjustified and that they be quashed.

The demand raised against the petitioner is of Protective Load Charge. The petitioner is a commercial establishment namely a hotel. The protective load charge as defined and liable to be levied, is governed under the provisions of paragraph 4.27 of the Electricity Supply Code, 2005 extracted hereinunder :-

4.27 Protective Load: The Licensee may grant protective load in exceptional cases, to be specified in agreement to those consumers, who have opted for twenty four hours use of power, on the following terms and conditions:-

(a) An additional charge as specified in the latest Rate Schedule (in the Tariff Order) shall be recovered each month through regular billing in any.

(b) The protective load may be subjected to any emergency rostering.

(c) The charges for protective load shall not count towards minimum charge for the main supply

(d) Protective load shall also be utilised for lights & fans and drinking water purposes.

(e) The consumer availing the facility of protective load shall, however, not be subjected to scheduled power cut imposed from time to time by the State Government or the Licensee. During the period of scheduled power cut, the protective load shall not exceed the sanctioned protective load.

(f) Protective load shall be sanctioned only to such consumers, who are given supply through an independent feeder at 11 KV and above emanating from a sub-station.

(g) Protective load shall not be released or continued to such consumer, against whom there are arrears towards the Licensee. The arrears, which are sub-judice before any competent Court and have been stayed, shall not be treated as arrears.

(h) If it is brought to the notice of the SLDC/Licensee that a particular consumer is using electricity during the period he is not permitted to do so, exceeding the sanctioned protective load, the feeder supplying such a consumer shall be opened to de-energize it from the source sub-station.

Sri Saxena submits that the supply of the petitioner is not from an independent feeder as per clause (f) of the aforesaid provision and in such circumstances, the insistence of the respondents to sign an agreement under the aforesaid clause is unjustified.

Having heard Sri Saxena, we find that the petitioner wants an

assured supply of 24 hours of electricity and in such circumstances, the petitioner will have to enter into an agreement with the respondent as per clause 4.27 extracted herein above.

The respondents are, therefore, in our opinion, justified in calling upon the petitioner to enter into such an agreement in order to extend the benefits arising out of clause 4.27. The nature of the feeder or supply therefrom in our opinion does not govern the entitlement of 24 hours assured supply. The said supply is permissible only if an agreement is entered into on the option being exercised by the petitioner in terms of clause 4.27. The petitioner, therefore, cannot pray for a certiorari to quash the notices for the reasons aforesaid. This prayer therefore stands rejected.

The petitioner has further made a prayer that since he has applied for reduction of load the same should be considered and refund should be ensured in relation to the reduced amount of load as per clause 4.41 of the 2005 Code.

The petitioner may accordingly approach the Executive Engineer, Urban Electricity Distribution Division-Vth, Varanasi, respondent no. 3 for the redressal of any such grievance, who shall look into the same and pass appropriate orders within two months from the production of certified copy of this order.

Order Date :- 3.2.2014
Puspendra